

Mass General Brigham
Independent Contractor Eligibility Determination Form

Name of Individual Providing Service:	
Name of the ‘dba’ Business name (if any):	
Address:	
Phone:	E-Mail:
Taxpayer ID Number: SSN:	
or EIN:	
Legal form of business (check one): Individual Partnership Corporation Other:	
Requesting Department:	
Requesting Supervisor:	Phone:
Department Contact:	Phone:
Funding Source: Fixed	Variable:
Department Head (Print Name):	
Department Head (Signature): _____ Date Submitted: _____	
Employment Status Verification (to be completed after submission by Supply Chain or HR):	
By:	Date:

The Massachusetts Office of the Attorney General's (AGO) duty is to ensure people at work are put into the right labor category. There is a law called the "Massachusetts Independent Contractor Law," which is also known as the "Massachusetts Misclassification Law." According to a statement from the AGO, classifying people correctly is important because when employers get it wrong and call people independent contractors when they are not, it causes problems like not paying enough taxes, giving an unfair advantage to employers, and not giving those misclassified individuals the same protections and benefits that regular employees get. Misclassifying people can lead to expensive fines or other punishments for Mass General Brigham.

To help us classify people correctly, please answer these four questions:

	Y e s	N o
(1) Will Mass General Brigham direct and control the performance of the work provided by this person?	☐	☐
(2) Are the services to be performed by this person outside of Mass General Brigham's usual course of business?	☐	☐
(3) Is the work being performed by someone who has their own, independent business that performs such services for entities other than Mass General Brigham?	☐	☐
(4) Is this individual a current or previous employee of any Mass General Brigham Entity?	☐	☐

If the individual does not meet the eligibility requirements, there are other employment options such as:

- * Payroll them under Bulfinch Temp [Click here](#)
- * Payroll them under Randstad [Click here](#)
- * All current employees must be paid through your entity’s Payroll